



CHAPTER 53.

An Act to enable parts of licensing districts to be included, in certain cases, in licensing planning areas constituted under the Licensing Planning (Temporary Provisions) Act, 1945; and to make further provision as to licensing planning committees under the said Act and sub-committees thereof. [6th June 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where—

- (a) a county district forms part only of a licensing district, or
(b) a county district includes parts of more than one licensing district,

section one of the Licensing Planning (Temporary Provisions) Act, 1945 (hereafter in this Act referred to as the "Act of 1945"), which provides for the constitution of licensing planning areas consisting of a licensing district or two or more contiguous licensing districts, shall have effect as if the references therein to licensing districts included references to any such county district as is mentioned in paragraph (a) or (b) of this subsection.

(2) In accordance with the last foregoing subsection there shall be made in the Act of 1945 the amendments set out in the Schedule to this Act.

2. Subsection (1) of section three of the Act of 1945 (which authorises the addition to licensing planning areas of licensing districts to which, or to any part of which, there has been or is likely to be a substantial transfer of population or industry from the original area) shall apply to parts of licensing districts as it applies to licensing districts, and accordingly in the said section

Constitution of licensing planning areas where county districts and licensing districts not co-terminous. 8 & 9 Geo. 6. c. 15.

Addition of parts of licensing districts to licensing planning areas.

three after the word " district ", wherever it occurs, there shall be inserted the words " or part thereof ".

Further
provisions
as to
committees
and sub-
committees.

3.—(1) An order under section one of the Act of 1945 constituting a licensing planning area may provide, and an order under subsection (1) of section three thereof adding to a licensing planning area any licensing district or part thereof may vary the provisions of the original order constituting the area so as to provide—

- (a) for the appointment of sub-committees of the licensing planning committee for the area ;
- (b) for authorising or requiring the reference by the committee to those sub-committees of such matters as may be specified in the order ;

and the power of the Secretary of State under paragraph (b) of section eleven of the Act of 1945 to regulate procedure shall include power to make regulations with respect to the procedure (including quorum) of sub-committees appointed by virtue of this subsection.

(2) An order under the said subsection (1) providing for the appointment, by the licensing justices and any local planning authority having jurisdiction in the district or part of a district added to the licensing planning area by the order, of additional members of the licensing planning committee may vary the provisions of the original order constituting the area so as to limit the right of the additional members to vote as members of the licensing planning committee to such matters relating to the added district or part of a district as may be specified in the order.

(3) Any order of the Secretary of State may, in so far as it makes any provision authorised by the foregoing provisions of this section or by this subsection, be varied or revoked by a subsequent order of the Secretary of State made after consultation with the licensing planning committee for the area in question.

(4) The foregoing provisions of this section shall not apply to any licensing planning area which consists of or includes the administrative County of London, except the City of London, but the power of the Secretary of State by order under subsection (3) of section ten of the Act of 1945 to provide for the addition to sub-committees appointed under that subsection of persons nominated by authorities or bodies concerned with the area or any part thereof shall include power to direct that persons nominated by authorities or bodies concerned with a part of the area outside the administrative County of London shall be members of the licensing planning committee as well as of a

sub-committee thereof, so however that the right of the said persons to vote as members of the committee may be limited to such matters relating to the part of the area in question as may be specified in the order.

(5) A licensing planning committee shall have power, and shall be deemed always to have had power, to pay to the secretary of any sub-committee appointed under subsection (1) of this section, or under subsection (3) of the said section ten, such remuneration as may be approved by the Secretary of State, and to defray, in such circumstances as may be so approved, expenses incurred in travelling by the secretary of any such sub-committee.

4. This Act may be cited as the Licensing Planning (Temporary Short title, Provisions) Act, 1946, and shall be construed as one with the Act construction of 1945 ; and the Act of 1945 and this Act may be cited as the and citation. Licensing Planning (Temporary Provisions) Acts, 1945 and 1946.

Section 1.

SCHEDULE.

AMENDMENTS CONSEQUENTIAL ON S.I.

1. In section one, for the words "licensing district" there shall be substituted the word "district", for the words "licensing districts" there shall be substituted the word "districts", and at the end of the section there shall be added the following provision :—

"In the foregoing provisions of this section the expression 'district' means a licensing district, a county district forming part only of a licensing district, or a county district including parts of more than one licensing district; and references to the licensing justices for a district shall be construed, in relation to any such county district as aforesaid, as references to the licensing justices for any licensing district comprising, or part of which is included in, the county district."

2. In subsection (6) of section two (which provides that the clerk of the licensing justices shall by virtue of his office be the secretary of a licensing planning committee) for the words "for the licensing district constituting the area, or, where the area includes more than one licensing district" there shall be substituted the words "for the licensing district constituting or comprising the area, or, where the area includes the whole or parts of more than one licensing district".

3. In subsection (1) of section three for the words "districts theretofore included in the area" there shall be substituted the words "licensing districts or parts thereof theretofore included in the area."

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